

Rajasthan Real Estate (Regulation and Development) Rules, 2017

**Government of Rajasthan
Urban Development Department
F.10(32)/UDH/3/2009
Jaipur Dated 01.05.2017
Notification**

In exercise of the powers conferred by section 84 of the Real Estate (Regulation and Development) Act, 2016 (Central Act No.16 of 2016), the State Government hereby makes the following rules, namely:-

Chapter-I Preliminary

1. Short title and Commencement.- (1) These rules may be called the Rajasthan Real Estate (Regulation and Development) Rules, 2017.

(2) They shall come into force from the date of their publication in the Official Gazette.

2. Definitions.- (1) In these rules, unless the context otherwise requires,-

(a) “**Act**” means the Real Estate (Regulation and Development) Act, 2016 (Central Act No.16 of 2016);

(b) “**authenticated copy**” means a self-attested copy of any document required to be provided by any person under these rules;

(c) “**Form**” means a form appended to these rules;

(d) “**layout plan**” means a plan of the project depicting the division or proposed division of land into plots, roads, open spaces, amenities, etc. and other details as may be necessary and includes building layout plan;

(e) “**limited common areas and facilities**” means those common areas and facilities which are designated in writing by the Promoter before the allotment, sale or other transfer of any apartment as reserved for use of certain apartment or apartments to the exclusion of the other apartments.

(f) “**planning area**” means a planning area or a development area as specified under the master plan;

(g) “**project land**” means any piece, parcel or parcels of land on which the project is developed and constructed by a promoter; and

(h) “**section**” means a section of the Act.

(2) Words and expressions used but not defined in these rules shall have the same meaning respectively assigned to them in the Act.

Chapter-II Real Estate Project

3. Additional information and documents to be furnished by the promoter for registration of project.- (1) The promoter shall furnish the following additional information and documents, along with those specified under the section 4, for registration of the real estate project with the Authority namely:-

(a) authenticated copy of the PAN card of the promoter;

(b) audited balance sheet of the promoter for the preceding financial year;

(c) the number of parking areas in each type of parking such as open, basement, stilt, mechanical, parking etc. available in the said real estate project;

(d) copy of the legal title deed reflecting the title of the promoter to the land on which the real estate project is proposed to be developed along with legally valid documents for chain of title with authentication of such title;

(e) the details of encumbrances on the land on which development is proposed including any rights, title, interest or name of any party in or over such land along with details;

(f) where the promoter is not the owner of the land on which development is proposed details of the consent of the owner of the land

along with a copy of the collaboration agreement, development agreement, joint development agreement or any other agreement, as the case may be, duly executed, entered into between the promoter and such owner and copies of title and other documents reflecting the title of such owner on the land proposed to be developed; and

(g) such other information and documents, as may be specified by the regulations.

(2) An application referred to in sub-section (1) of section 4 shall be made in writing in Form-A which shall be submitted in triplicate, until the application procedure is made web based as provided under sub-section (3) of section 4.

(3) The promoter shall pay a registration fee at the time of application for registration by way of a demand draft, a bankers cheque drawn on any scheduled bank or through online payment mode, as the case may be, for a sum calculated at the rate of, –

(a) in case of group housing projects rupees five per square meter for project where the area of land proposed to be developed does not exceed one thousand square meters or rupees ten per square meter for projects where the area of land proposed to be developed exceeds one thousand square meters but shall not be more than five lakhs rupees;

(b) in case of mixed development (residential and commercial) projects rupees ten per square meter for project where the area of land proposed to be developed does not exceed one thousand square meters or rupees fifteen per square meter for projects where the area of land proposed to be developed exceeds one thousand square meters but shall not be more than ten lakhs rupees;

(c) in case of commercial projects rupees twenty per square meter for projects where the area of land proposed to be developed does not exceed one thousand square meters or rupees twenty five per square meter for commercial or any other projects, where the area of land proposed to be developed exceeds one thousand square meters but shall not be more than ten lakhs rupees; and

(d) in case of plotted development projects rupees five per square meter but shall not be more than two lakhs rupees;

(4) The declaration to be submitted under clause (l) of sub-section (2) of section 4 shall be in Form-B which shall include a declaration stating that the promoter shall not discriminate on the basis of caste, religion, language, region, sex or marital status against any allottee at the time of allotment of any apartment, plot or building, as the case may be.

(5) In case the promoter applies for withdrawal of application for registration of the project before the expiry of the period of thirty days provided under sub-section (1) of section 5, registration fee to the extent of five percent paid under sub-rule (3) above, or rupees twenty five thousand whichever is more, shall be retained as processing fee by the Authority and the remaining amount shall be refunded to the promoter within thirty days from the date of such withdrawal.

4. Disclosure by promoters of ongoing projects.- (1) Upon the commencement of sub-section (1) of section 3, promoters of all ongoing projects which have not received completion certificate as required under local law shall within the time specified in the said sub-section make an application to the Authority in rule 3.

(2) The promoter shall disclose all project details as required under the Act, rules and regulations made thereunder including the status of the project and the extent of completion.

(3) The promoter shall disclose the size of the apartment based on carpet area even if earlier sold on any other basis such as super area, super built up area, built up area etc. which shall not affect the validity of the agreement entered into between the promoter and the allottee to that extent.

(4) In case of plotted development the promoter shall disclose the area of the plot being sold to the allottees.

(5) Where the project is to be developed as separate buildings in phases, every such building or group of buildings as decided or declared by the

promoter at the time of registration shall be considered as a phase and the promoter shall obtain registration under the Act for each phase separately.

Explanation : For the purpose of this rule “ongoing project” means a project where development is going on and for which completion certificate has not been issued but excludes such projects which fulfill any of the following criteria on the date of commencement of relevant provisions of the Act:-

- (i) where common areas and facilities have been handed over to the association of allottees or the competent authority, as the case may be, for maintenance;
- (ii) where sale/lease deeds or possession letter of minimum sixty percent of the apartments /houses/plots in the phase/project have been executed;
- (iii) where all development works have been completed and completion certificate has been obtained from chartered engineer in practice as per prevalent Township Policy;
- (iv) where completion certificate has been obtained from the competent authority or where all development works have been completed and application has been filed with the competent authority;
- (v) where development is done in phases then each phase shall be considered as a separate project and the phases which fulfill any of the above conditions shall be excluded;
- (vi) where competent authorities/local bodies have started issuing lease deeds for plots by organising camps or otherwise in township schemes; or
- (vii) where services have been handed over to the local authority for maintenance or more than fifty percent of the development charges for the same have been deposited to the local authority.

5. Withdrawal of sums deposited in separate account.- (1) For the purposes of sub-clause (D) of clause (l) of sub-section (2) of section 4, the

land cost shall be the cost incurred by the promoter whether as an outright purchase, lease charges etc. and includes,-

- (i) revenue or area share given to land owner in lieu of land under any kind of agreement such as Joint Venture, Joint Development etc, in case the Promoter is not the owner of the land,
- (ii) amount paid to land owner,
- (iii) incidental costs related to acquisition of land such as stamp duty, brokerage, settlement costs of litigation, premiums paid to government authorities related to land,
- (iv) interest on finance for purchase of land,
- (v) litigation costs incurred for land acquisition,
- (vi) property and other taxes, fees, premiums paid.

(2) For the purposes of sub-clause (D) of clause (I) of sub-section (2) of section 4, the construction cost shall be the total cost incurred by the promoter, towards the on-site expenditure for the physical development of the project and includes fees payable to the architects, consultants, project managers/staff including engineers, marketing agents etc. fees/charges/security deposit payable to various departments/authorities, Labor Cess, VAT which are incurred during the development of the project.

6. Grant or rejection of registration of the project.- (1) Upon the registration of a project under section 5, the Authority shall grant a registration certificate with a registration number in Form-C to the promoter.

(2) In case of rejection of the application as per section 5 the Authority shall inform the applicant in Form-D.

7. Extension of registration of the project.- (1) The registration granted under section 5, may be extended as per section 6, on an application made by the promoter in Form-E prior to the expiry of the registration granted.

(2) The application for extension of registration shall be accompanied with a demand draft or bankers cheque drawn on any scheduled bank or proof of payment through online mode, as the case may be, for an amount equivalent to half of the registration fee as specified under sub-rule (3) of rule 3 along with an explanatory note setting out the reasons for delay in the completion of the project and the need for extension of registration for the project, along with documents supporting such reasons:

Provided that where extension of registration is due to force majeure the Authority may at its discretion waive the fee for extension of registration.

(3) Extension of registration of the project shall not be beyond the period provided as per local laws for completion of the project or phase thereof, as the case may be.

(4) In case of extension of registration the Authority shall grant the certificate for extension of registration in Form-F to promoter and in case of rejection of the application for extension of registration the Authority shall inform the promoter, in Form-D about the same:

Provided that no application for extension of registration shall be rejected unless the applicant has been given an opportunity of being heard in the matter.

8. Revocation of registration of the project.- Upon the revocation of registration of a project as per section 7 the Authority shall inform the promoter in Form-D about such revocation.

9. Agreement for sale.- (1) For the purpose of sub-section (2) of section 13, the agreement for sale shall be in Form-G.

(2) Any application, letter, allotment letter or any other document signed by the allottee, in respect of the apartment, plot or building, prior to the execution and registration of the agreement for sale for such apartment, plot or building, as the case may be, shall not be construed to limit the rights and interests of the allottee or the promoter under the agreement for sale, under the Act, the rules or the regulations made thereunder.

Chapter-III Real Estate Agent

10. Application for Registration by the real estate agent.- (1) Every real estate agent required to register as per sub-section (2) of section 9 shall make an application in Form-H to the Authority along with the following documents, namely:-

- (a) brief details of his enterprise including its name, registered address, type of enterprise (proprietorship, society, partnership, company etc.);
- (b) particulars of registration (whether proprietorship, society, partnership, company etc.) including the bye-laws, memorandum of association, articles of association etc. as the case may be;
- (c) photograph of the real estate agent if it is an individual and the photograph of the partners, directors etc. in case of other entities;
- (d) authenticated copy of the PAN card;
- (e) authenticated copy of the address proof of the place of business; and
- (f) such other information and documents, as may be specified by regulations.

(2) The real estate agent shall pay a registration fee at the time of application for registration by way of a demand draft or a bankers cheque drawn on any scheduled bank or through online mode, as the case may be, for a sum of rupees ten thousand in case of the applicant being an individual or rupees fifty thousand in case of the applicant being anyone other than an individual.

11. Grant of Registration to the real estate agent.- (1) Upon the registration of a real estate agent as per section 9 read with rule 10, the Authority shall issue a registration certificate with a registration number in Form-I to the real estate agent.

(2) In case of rejection of the application as per section 9 the Authority shall inform in Form-J to the applicant.

(3) The registration granted under this rule shall be valid for a period of five

years.

12. Renewal of registration of real estate agent.- (1) The registration granted under section 9 may be renewed, on an application made by the real estate agent in Form-K which shall not be less than three months prior to the expiry of the registration granted.

(2) The application for renewal of registration shall be accompanied with a demand draft or bankers cheque drawn on any scheduled bank or proof of payment through online mode, as the case may be, for a sum of rupees five thousand in case of the real estate agent being an individual or rupees twenty five thousand in case of the real estate agent being anyone other than an individual.

(3) The real estate agent shall also submit all the updated documents set out in clauses (a) to (f) of sub-rule (1) of rule 10 at the time of application for renewal.

(4) In case of renewal of registration, the Authority shall grant the certificate for renewal of registration in Form-L to the real estate agent and in case of rejection of the application for renewal of registration the Authority, shall inform the real estate agent in Form-J:

Provided that no application for renewal of registration shall be rejected unless the applicant has been given an opportunity of being heard in the matter.

(5) The renewal of registration of the real estate agent shall be granted provided that the real estate agent remains in compliance with the provisions of the Act and the rules and regulations made thereunder.

(6) The renewal granted under this rule shall be valid for a period five years.

13. Revocation of Registration of real estate agent.- The Authority may, due to reasons specified under sub-section (7) of section 9, revoke the registration granted to the real estate agent or renewal thereof, as the case may be, and intimate the real estate agent of such revocation in Form-J.

14. Maintenance and preservation of books of accounts, records and

documents.- The real estate agent shall maintain and preserve books of account, records and documents in accordance with the provisions of the Income Tax Act, 1961.

15. Other functions of a real estate agent.- The real estate agent shall provide assistance to enable the allottee and promoter to exercise their respective rights and fulfil their respective obligations at the time of booking and sale of any plot, apartment or building, as the case may be.

Chapter-IV Details to be published on the Website of the Authority

16. Details to be published on the website.- (1) For the purpose of clause (b) of section 34, the Authority shall ensure that the following information shall be made available on its website in respect of each project registered under the Act, namely:-

(A) Details of the promoter including the following:-

(i) Developer or Group Profile:

(a) a brief detail of his enterprise including its name, registered address, type of enterprise (proprietorship, limited liability partnership, society, partnership, company, competent authority) and the particulars of registration and in case of a newly incorporated or registered entity, brief details of the parent entity including its name, registered address, type of enterprise (proprietorship, society, limited liability partnership, partnership, companies, competent authority);

(b) background of promoter such as educational qualification, work experience and in case of a newly incorporated or registered entity work experience of the chairman, directors, partners, as the case may be and that of the authorised persons of the parent entity; and

(c) name, address, contact details and photograph of the promoter in case of an individual and the name, address, contact details and photograph of the chairman, directors, partners, as the case may be and that of the authorised persons.

(ii) Track record of the promoter:

- (a) number of years of experience of the promoter or parent entity in real estate construction in the State;
- (b) number of years of experience of the promoter or parent entity in real estate construction in other states or union territories;
- (c) number of completed projects and area constructed till date;
- (d) number of ongoing projects and proposed area to be constructed; and
- (e) details and profile of ongoing and completed projects for the last five years as provided under clause (b) of sub-section (2) of section 4.

(iii) Litigations:

details of litigations in relation to the real estate projects developed or being developed in the past five years by the promoter.

(iv) Website:

- (a) web link to the developer or group website;
- (b) web link to the project website.

(B) Details of the real estate project including the following:-

(i) Registration:

- (a) authenticated copy of the approvals and commencement certificate from the competent authority as provided under clause (c) of sub-section (2) of section 4;
- (b) the sanctioned plan, layout plan and specifications of the project or the phase thereof and the whole project as sanctioned by the competent authority as provided under

clause (d) of sub-section (2) of section 4; and

(c) details of the registration granted by the Authority.

(ii) Apartment and garage related details:

(a) details of the number, type and carpet area of apartments for sale in the project as provided under clause (h) of sub-section (2) of section 4;

(b) details of the number and areas of garage or basement parking or stilt parking for sale in the project as provided under clause (i) of sub-section (2) of section 4; and

(c) details of the number of open parking including visitor parking areas available in the real estate project.

(iii) Registered Agents:

names and addresses of real estate agents, if any, as provided under clause (j) of sub-section (2) of section 4.

(iv) Consultants:

details, including name and addresses, of contractors, architect and structural engineers and other persons concerned with the development of the real estate project as provided under clause (k) of sub-section (2) of section 4, such as:-

(a) Name and address of the person;

(b) Names of promoters;

(c) Year of establishment; and

(d) Names and profile of key projects completed.

(v) Location:

the location details of the project, with clear demarcation of land

dedicated for the project along with its boundaries including the latitude and longitude of the end points of the project as provided under clause (f) of sub-section (2) of section 4.

(vi) Development Plan:

(a) the plan of development works to be executed in the proposed project and the proposed facilities to be provided thereof including fire fighting facilities, drinking water facilities, emergency evacuation services, use of renewable energy etc. as provided under clause (e) of sub-section (2) of section 4;

(b) a detailed note explaining the salient features of the proposed project including access to the project, design for electric supply including street lighting, water supply arrangements and site for disposal and treatment of storm and sullage water, any other facilities and amenities or public health services proposed to be provided in the project; and

(c) gantt charts or milestone charts and project schedule i.e. the plan of the development works to be executed in the project and the details of the proposed facilities to be provided thereof and the timelines to achieve the same .

(C) Financial details of the promoter:

(i) authenticated copy of the PAN card of the promoter; and

(ii) audited balance sheet of the promoter for the preceding financial year and in case of a newly incorporated or registered entity annual audited balance sheet of the last three financial years of the parent entity.

(D) The promoter shall upload the following updates on the webpage for the project, within fifteen days from the expiry of each quarter:

(i) list of number and types of apartments or plots, as the case may

be, booked;

(ii) list of number of garages booked;

(iii) status of the project:

(a) status of construction of each building with photographs;

(b) status of construction of each floor; and

(c) status of construction of internal infrastructure and common areas with photographs.

(iv) Status of approvals:

(a) approval received;

(b) approvals applied and expected date of receipt;

(c) approvals to be applied and date planned for application; and

(d) modifications, amendment or revisions, if any, issued by the competent authority with regard to any sanctioned plans, layout plans, specifications, license, permit or approval for the project.

(E) Downloads:

(i) Approvals:

(a) no objection certificates (wherever required under local law)

(i) environmental clearance,

(ii) fire NOC;

(iii) permission for water supply and sewerage;

(iv) height clearance from the Airport Authority of

India; and

(v) such other approvals as may be required and obtained for the project.

(b) authenticated copy of the land use permission and building sanction plan from the competent authority obtained in accordance with the laws applicable for the project and where the project is proposed to be developed in phases, an authenticated copy of the land use permission and building sanction plan for each of such phases;

(c) authenticated copy of the site plan or site map showing the location of the project land along with names of revenue villages, survey numbers, khasra numbers, plot numbers and area of each parcels of the project land;

(d) authenticated copy of the layout plan of the project or the phase thereof, and also the layout plan of the whole project as sanctioned by the competent authority;

(e) floor plans for each tower and block including clubhouse, amenities and common areas;

(f) any other permission, approval or licence that may be required under applicable law; and

(g) authenticated copy of occupancy certificate or completion certificate (whichever is required under law applicable) including its application.

(ii) Legal Documents:

(a) details including the performa of the application form, allotment letter, agreement for sale and the conveyance deed;

(b) authenticated copy of the legal title deed reflecting the title of the promoter to the land on which development is

proposed to be developed along with legally valid documents with authentication of such title, if such land is owned by another person;

(c) land title search report from an advocate having experience of at least three years in land related matters;

(d) details of encumbrances on the land on which development is proposed including any rights, title, interest or name of any party in or over such land along with details or no encumbrance certificate from an advocate having experience of at least three years in land related matters;

(e) where the promoter is not the owner of the land on which development is proposed details of the consent of the owner of the land along with a copy of the collaboration agreement, development agreement, joint development agreement or any other agreement, as the case may be, entered into between the promoter and such owner and copies of title and other documents reflecting the title of such owner on the land proposed to be developed;

(f) sanction letters:

(i) from banks for construction loan; and

(ii) from banks for home loan tie-ups.

(g) details of mortgage or charge, if any, created on the land and the project.

(F) Contact details:

contact address, contact numbers and email-id of the promoter and other officials handling the project.

(G) Such other documents or information as may be specified by the Act or the rules and regulations made thereunder.

(2) For the purpose of clause (c) of section 34, the Authority shall maintain a database and ensure that the information specified therein shall be made available on its website in respect of each promoter as defaulter including the project details, registration for which has been revoked or have been penalised under the Act.

(3) For the purpose of clause (d) of section 34, the Authority shall ensure that the following information shall be made available on its website in respect of each real estate agent registered with it or whose application for registration has been rejected or revoked:

(A) for real estate agents registered with the Authority:

(i) registration number and the period of validity of the registration of the real estate agent;

(ii) brief details of his enterprise including its name, registered address, type of enterprise (proprietorship, society, partnership, company etc.);

(iii) particulars of registration as proprietorship, society, partnership, company etc including the bye-laws, memorandum of association, articles of association etc. as the case may be;

(iv) name, address, contact details and photograph of the real estate agent if he is an individual and the name, address, contact details and photograph of the partners, directors etc. in case of others;

(v) authenticated copy of the PAN card; and

(vi) authenticated copy of the address proof of the place of business of the real estate agent and its other officials.

(B) In case of applicants whose application for registration as a real estate agent have been rejected or real estate agents whose registration has been revoked by the Authority:

(i) registration number and the period of validity of the

registration of the real estate agent;

(ii) brief details of his enterprise including its name, registered address, type of enterprise (proprietorship, society, partnership, company etc.); and

(iii) name, address, contact details and photograph of the real estate agent if he is an individual and the name, address, contact details and photograph of the partners, directors etc. in case of others.

(C) Such other documents or information as may be specified by the Act or the rules and regulations made thereunder.

(4) The Authority shall maintain a back-up, in digital form, of the contents of its website in terms of this rule and ensure that such back-up is updated on the last day of each month.

Chapter-V Rate of interest payable by Promoter and Allottee and timelines for refund

17. Rate of interest payable by the promoter and the allottee.- The rate of interest payable by the promoter to the allottee or by the allottee to the promoter, as the case may be, shall be the State Bank of India highest marginal cost of lending rate plus two percent:

Provided that in case the State Bank of India marginal cost of funds based lending rates is not in use it would be replaced by such benchmark lending rates which the State Bank of India may fix, from time to time, for lending to the general public.

18. Timelines for refund.- (1) Any refund along with the applicable interest and compensation, if any, payable by the promoter in terms of the provisions of section 18 of the Act shall be payable by the promoter to the allottee within forty-five days from the date on which such refund along with interest and compensation, if any, becomes due.

(2) In case the allottee proposes to withdraw from the project without any default of the promoter, before the completion of project, the interest and

time period for refund shall be determined as per terms and conditions between the parties in agreement to sale.

Chapter-VI Real Estate Regulatory Authority

19. Manner of selection of Chairperson and Members of the Authority.

(1) As and when vacancies of Chairperson or a Member in the Authority exist or arise or are likely to arise, the State Government may make a reference to the Selection Committee in respect of the vacancies to be filled.

(2) The Selection Committee may, for the purpose of selection of the Chairperson or a Member of the Authority follow such procedure as deemed fit including the appointment of a search committee consisting of such persons as the Selection Committee considers appropriate to suggest a panel of names possessing the requisite qualification and experience and suitable for being considered for appointment as Chairperson or Member of the Authority.

(3) The Selection Committee shall select two persons for each vacancy and recommend the same to the State Government.

(4) The Selection Committee shall make its recommendation to the State Government within a period of sixty days from the date of reference made under sub-rule (1).

(5) The State Government shall within thirty days from the date of the recommendation by the Selection Committee, appoint one of the two persons recommended by the Selection Committee for the vacancy of the Chairperson or Member, as the case may be.

20. Salary and allowances payable and other terms and conditions of service of Chairperson and Members of the Authority.-

(1) The Chairperson and whole-time Members of the Authority shall be paid such salary and allowances as may be fixed by the State Government, from time to time, but if the Chairperson or a Member so appointed is or was in the service of the State Government or Central Government or any authority thereunder, he shall be paid a monthly salary equivalent to the last drawn salary at the post held by such person, prior to his appointment as

Chairperson or a Member, as the case may be, of the Authority:

Provided that if the Chairperson or a Member of the Authority before the date of assuming office as Chairperson or a Member, as the case may be, was in receipt of or being eligible to receive any pension in respect of any previous service under the Central Government or the State Government or any authority thereunder, his salary in respect of service as a Chairperson or as a Member, as the case may be, shall be reduced by the amount of that pension and dearness relief thereon, including any portion of the pension which may have been commuted.

(2) In case of persons re-employed after retirement, the provisions contained in the Rajasthan Service Rules, 1956 regarding leave and leave salary shall apply except the following, namely:-

- (i) encashment of balance of Privileged Leave during the period of re-employment,
- (ii) encashment balance of Privileged Leave on expiry of re-employment, and
- (iii) medical leave.

(3) The other allowances payable to and conditions of service of the Chairperson and the whole-time Member of the Authority shall be such as may be determined by the State Government, from time to time.

(4) Every part-time member of the Authority, who is not a servant of the Government, shall be paid a sitting fee for each day he attends the meetings of the Authority as may be determined by the State Government, from time to time and they shall not be entitled to any other allowance.

(5) A person, who, on the date of his appointment as a Chairperson or a Member of the Authority, as the case may be, was in the service of the Central Government or the State Government shall be deemed to have been retired from service i.e. from the date on which he enters upon his office as Chairperson or a Member.

21. Administrative powers of the Chairperson of the Authority.- The

administrative powers of the Chairperson of the Authority shall include making decisions, subject to prevailing service rules applicable on the State Government employee pertaining to staff and officers, budget provisions and general directions of the State Government, with regard to the following:

- (a) all matters pertaining to creation and abolition of posts with the previous sanction of the Finance Department;
- (b) all matters pertaining to appointments, promotions and confirmation for all posts;
- (c) acceptance of resignation of a Member, officer or employee of the Authority;
- (d) officiating arrangement against sanctioned posts;
- (e) authorisation for tours to be undertaken by any Member, officer or employee within India and allowance to be granted for the same;
- (f) all matters in relation to reimbursement of medical claims;
- (g) all matters in relation to grant or rejection of leaves to Members, Staff and Officers
- (h) permission for hiring of vehicles, with the previous sanction of the Finance Department, for official use;
- (i) nominations for attending seminars, conferences and training courses in India;
- (j) permission for invitation of guests to carry out training course;
- (k) all matters pertaining to staff welfare expenses;
- (l) sanction scrapping or write-off of capital assets which due to normal wear and tear have become unserviceable or are considered beyond economical repairs;
- (m) all matters relating to disciplinary action against any officer or

employee; and

(n) any other powers that may be required for the efficient functioning of the Authority and enforcement of the provisions of the Act and these rules.

22. Salary and allowances payable and other terms and conditions of service of the officers and other employees of the Authority and experts and consultants engaged by the Authority.- (1) The conditions of service of the officers and employees of the Authority and any other category of employees in the matter of pay, allowances, leave, joining time, joining time pay, age of superannuation and other conditions of service, shall be regulated in accordance with such rules and regulations as are, from time to time, applicable to officers and employees of the State Government and drawing the corresponding scales of pay;

(2) Consultants or experts that may be engaged by the Authority:

(a) shall be paid a monthly honorarium as may be determined by the State Government, from time to time;

(b) the consultant or expert may be appointed for a tenure of one year, extendable on year to year basis;

(c) the terms of their appointment may be terminated by the Authority by serving one month's notice.

(3) The State Government shall have power to relax the provisions of any of these rules in respect of any class or category of officers or employees or consultants and experts, as the case may be.

23. Functioning of the Authority.- (1) The office of the Authority shall be located at such place as may be determined by the State Government, from time to time.

(2) The working days and office hours of the Authority shall be the same as that of the State Government.

(3) The official common seal and emblem of the Authority shall be such as

the State Government may specify.

24. Additional powers of the Authority.- (1) In addition to the powers specified in sub-section (2) of section 35 the Authority shall also have the following powers, namely:-

(a) require the promoter, allottee or real estate agent to furnish in writing such information or explanation or produce such documents within such reasonable time, as it may deem necessary; and

(b) requisitioning, subject to the provisions of sections 123 and 124 of the Indian Evidence Act, 1872, any public record or document or copy of such record or document from any office.

(2) The Authority may call upon such experts or consultants from the fields of economics, commerce, accountancy, real estate, competition, construction, architecture or engineering or law or from any other discipline as it deems necessary, to assist the Authority in the conduct of any inquiry or proceedings before it.

(3) The Authority may in the interest of the allottees, enquire into the payment of amounts imposed as penalty, interest or compensation, paid or payable by the promoter, in order to ensure that the promoter has not.-

(a) withdrawn the said amounts from the account maintained as provided under sub-clause (D) of clause (l) of sub-section (2) of section 4; or

(b) used any amounts paid to such promoter by the allottees for that real estate project for which the penalty, interest or compensation is payable, or any other real estate project; or

(c) recovered the amounts paid as penalty, fine or compensation from the allottees of the relevant real estate project or any other real estate project.

25. Manner of recovery of interest, penalty and compensation.- Subject to the provisions of sub-section (1) of section 40, the recovery of the amounts due as arrears of land revenue shall be recovered in the manner as

provided in the Rajasthan Land Revenue Act, 1956 and rules made thereunder.

26. Manner of implementation of order, direction or decisions of the adjudicating officer, the Authority or the Appellate Tribunal.- For the purpose of sub-section (2) of section 40, every order passed by the adjudicating officer, Authority or Appellate Tribunal, as the case may be, under the Act or the rules and regulations made thereunder, shall be enforced by the adjudicating officer, Authority or the Appellate Tribunal in the same manner as if it were a decree or order made by the principal civil court in a suit pending therein and it shall be lawful for the adjudicating officer, Authority or Appellate Tribunal, as the case may be, in the event of its inability to execute the order, send such order to the principal civil court, to execute such order either within the local limits of whose jurisdiction the real estate project is located or in the principal civil court within the local limits of whose jurisdiction the person against whom the order is being issued, actually and voluntarily resides, or carries on business, or personally works for gain.

Chapter-VII Real Estate Appellate Tribunal

27. Form for filing Appeal and the fees payable.- (1) Every appeal filed under sub-section (1) of section 44 shall be accompanied by a fee of rupees five thousand in the form of a demand draft or a bankers cheque drawn on a nationalized bank in favour of the Appellate Tribunal and payable at the branch of that bank at the station where the seat of the said Appellate Tribunal is situated or proof of payment through online mode.

(2) Every appeal shall be filed in Form-M, in triplicate until the application procedure is made web based, along with the following documents:-

- (a) An attested true copy of the order against which the appeal is filed;
- (b) Attested copies of the documents relied upon by the appellant and referred to in the appeal; and
- (c) An index of the documents.

(3) Every appeal shall be either filed at the filling counter of the Registry of

the Appellate Tribunal or through a registered post or through online system, as applicable.

(4) In case of an appeal sent by post under sub-rule (3), it shall be deemed to have been presented to the Appellate Tribunal on the day on which it is received in its office.

(5) Whether a party to the appeal is represented by an authorised person, as provided under section 56, a copy of the authorisation to act as such and the written consent thereto by such authorised person, both in original, shall be appended to the appeal or the reply to the notice of the appeal, as the case may be.

(6) On the date of hearing or any other date to which hearing could be adjourned, it shall be obligatory on the parties or their agents, as the case may be, to appear before the Appellate Tribunal:

Provided that where the appellant or his authorised person, as the case may be, fails to appear before the Appellate Tribunal on such days, the Appellate Tribunal may in its discretion either dismiss the appeal for default or decide it on the merits and where the opposite party or his authorised person fails to appear on the date of hearing, the Appellate Tribunal may decide the appeal ex-parte.

(7) The procedure for day to day functioning of the Appellate Tribunal, which have not been provided by the Act or the rules made thereunder, shall be as decided by the Appellate Tribunal.

28. Manner of selection of Members of the Appellate Tribunal.-

(1) As and when vacancies of a Member in the Appellate Tribunal exist or arise or are likely to arise, the State Government may make a reference to the Selection Committee in respect of the vacancies to be filled.

(2) The Selection Committee may, for the purpose of selection of the Member of the Appellate Tribunal, follow such procedure as deemed fit including the appointment of a search committee consisting of such persons as the Selection Committee considers appropriate to suggest a panel of names possessing the requisite qualification and experience and suitable for being

considered for appointment as Member of the Appellate Tribunal.

(3) The Selection Committee shall select two persons for each vacancy and recommend the same to the State Government.

(4) The Selection Committee shall make its recommendation to the State Government within a period of sixty days from the date of reference made under sub-rule (1).

(5) The State Government shall within thirty days from the date of the recommendation by the Selection Committee, appoint one of the two persons recommended by the Selection Committee for the vacancy of the Member.

29. Salary and allowances payable and other terms and conditions of service of Chairperson and Members of the Appellate Tribunal.- (1) The salaries and allowances payable to the Chairperson and Members of the Appellate Tribunal shall be as follows:-

(a) the Chairperson shall be paid a monthly salary equivalent to the last drawn salary by such person, as a Judge of a High Court;

(b) the whole time Member shall be paid a monthly salary equivalent to the last drawn salary at the post held by such person, prior to his appointment as a Member of the Appellate Tribunal:

Provided that if the Chairperson or a Member, before the date of assuming office as Chairperson or a Member, as the case may be, was in receipt of or being eligible so to receive any pension in respect of any previous service under the Central Government or the State Government or any authority thereunder, his salary in respect of service as a Chairperson or as a Member, as the case may be, shall be reduced by the amount of that pension and dearness relief thereon, including any portion of the pension which may have been commuted.

(c) Every whole time Member, who was not receiving pension from the Central Government or the State Government or any authority thereunder, shall be paid a monthly salary equivalent to the salaries (dearness allowance inclusive) as admissible to an officer of the rank of

Principal Secretary to the Government of Rajasthan. He shall be fixed at the entry level pay as admissible to an officer of such rank;

(d) Every part-time Member, who is not a servant of the Government, shall be paid a sitting fee for each day he attends the meetings of the Appellate Tribunal as may be determined by the State Government, from time to time and they shall not be entitled to any other allowance;

(2) The Chairperson and every whole time Member shall be entitled to thirty days of earned leave for every completed calendar year of service in the Appellate Tribunal. The power to grant or refuse leave to the Chairperson and to revoke or curtail leave granted to him shall vest in the Governor.

(3) The other allowances payable to and conditions of service of the Chairperson and the whole time Member shall be determined by the State Government, from time to time.

30. Functioning of Appellate Tribunal.- (1) The office of the Appellate Tribunal shall be located at such place as may be determined by the State Government.

(2) The working days and office hours of the Appellate Tribunal shall be the same as that of the normal working days and office hours of the other offices of the State Government.

(3) The official common seal and emblem of the Appellate Tribunal shall be such as the State Government may specify.

(4) Every notice, order and judgment of the Appellate Tribunal shall bear the seal of the Appellate Tribunal which shall be in custody with the person designated by the Chairperson of the Tribunal.

(5) The Appellate Tribunal shall ordinarily have sittings at its headquarters and at such places as the Chairperson may by general or special order specify.

31. Salary and allowances payable and other terms and conditions of service of the officers and other employees of the Appellate Tribunal.-

(1) The conditions of service of the officers and employees of the Appellate

Tribunal and any other category of employees in the matter of pay, allowances, leave, joining time, joining time pay, age of superannuation and other conditions of service shall be regulated in accordance with such rules and regulations as are, from time to time, applicable to officers and employees of the State Government and drawing the corresponding scales of pay.

(2) The State Government shall have power to relax the provisions of any of these rules in respect of any class or category of officers or employees or consultants and experts, as the case may be.

32. Additional powers of the Appellate Tribunal.- (1) In addition to the powers specified in of section 53, the Appellate Tribunal shall exercise the following additional powers, namely:-

(a) require the promoter, allottee or real estate agent to furnish in writing such information or explanation or produce such documents within such reasonable time, as it may deem necessary; and

(b) requisitioning, subject to the provisions of sections 123 and 124 of the Indian Evidence Act, 1872, any public record or document or copy of such record or document from any office.

(2) The Appellate Tribunal may call upon such experts or consultants from the fields of economics, commerce, accountancy, real estate, competition, construction, architecture or engineering or law or from any other discipline as it deems necessary, to assist the Appellate Tribunal in the conduct of any inquiry or proceedings before it.

33. Administrative powers of the Chairperson of the Appellate Tribunal.- The administrative powers of the Chairperson of the Appellate Tribunal shall include making decisions subject to prevailing service rules applicable on the State Government employees pertaining to Staff and Officers, budget provisions and general directions of the State Government with regard to the following:-

(a) all matters pertaining to creation and abolition of posts;

(b) all matters pertaining to appointments, promotions and

- confirmation for all posts;
- (c) acceptance of resignation by any Member, officer or employee;
- (d) officiating arrangements against sanctioned posts;
- (e) authorisation of tours to be undertaken by any Member, officer or employee, within India and allowance to be granted for the same;
- (f) all matters in relation to reimbursement of medical claims;
- (g) all matters in relation to grant or rejection of leaves.
- (h) permission for hiring of vehicles for official use;
- (i) nominations for attending seminars, conferences and training courses in India or abroad;
- (j) permission for invitation of guests to carry out training course;
- (k) all matters pertaining to staff welfare expenses;
- (l) sanction scrapping or write-off of capital assets which due to normal wear and tear have become unserviceable or are considered beyond economical repairs;
- (m) all matters relating to disciplinary action against any officer or employee; and
- (n) any other powers that may be required for the efficient functioning of the Appellate Tribunal and enforcement of the provisions of the Act and these rules.

Chapter-VIII Offences and Penalties

34. Terms and conditions and the fine payable for compounding of offence.- (1) The court may compound any offence specified under section 70 on payment of amount as specified in the table given below:-

Table

S.N.	Offence	Amount to be paid for compounding the offence
1	2	3
1	Punishable with imprisonment under sub-section (2) of section 59	five percent of the estimated cost of the real estate project
2	Punishable with imprisonment under section 64	five percent of the estimated cost of the real estate project
3	Punishable with imprisonment under section 66	five percent of the estimated cost of the plot, apartment or building, as the case may be, of the real estate project, for which the sale or purchase has been facilitated
4	Punishable with imprisonment under section 68	five percent of the cost of the plot, apartment or building, as the case may be

(2) On payment of the amount in accordance with sub-rule (1) and subsequent to compliance of the orders of the Authority or Appellate Tribunal as provided under sub-rule (4), any person in custody in connection with that offence shall be set at liberty and no proceedings shall be instituted or continued against such person in any court.

(3) The acceptance of the amount for compounding an offence under sub-rule (1), by the Court shall be deemed to an acquittal within the meaning of section 300 of the Code of Criminal Procedure, 1973.

(4) The promoter, allottee or real estate agent, as the case may be, shall comply with the orders of the Authority or the Appellate Tribunal, within the period specified by the court, which shall not be more than thirty days from the date of compounding of the offence.

35. Manner of filing a complaint with the Authority and the manner of holding an inquiry by the Authority.- (1) Any aggrieved person may file a complaint with the Authority for any violation under the Act or the rules and regulations made thereunder, save as those provided to be adjudicated by the adjudicating officer, in Form-N, in triplicate until the application procedure is made web based, which shall be accompanied by a fee of rupees one thousand in the form of a demand draft or bankers cheque drawn on a nationalised bank in favor of Authority and payable at the

branch of that bank at the station where the seat of the said Authority is situated or through online payment, as the case may be.

(2) The Authority shall for the purposes of deciding any complaint as specified under sub-rule (1), follow summary procedure for inquiry in the following manner, namely:-

(a) upon receipt of the complaint, the Authority shall issue a notice along with particulars of the alleged contravention and the relevant documents to the respondent;

(b) the respondent against whom such notice is issued under clause (a) above, may file his reply in respect of the complaint within the period as specified in the notice;

(c) the notice may specify a date and time for further hearing and the date and time for the hearing shall also be communicated to the complainant;

(d) on the date so fixed, the Authority shall explain to the respondent about the contravention alleged to have been committed in relation to any of the provisions of the Act or the rules and regulations made thereunder and if the respondent,-

(i) pleads guilty, the Authority shall record the plea, and pass such orders including imposition of penalty as it thinks fit in accordance with the provisions of the Act or the rules and regulations, made thereunder;

(ii) does not plead guilty and contests the complaint the Authority shall demand an explanation from the respondent;

(e) in case the Authority is satisfied on the basis of the submissions made that the complaint does not require any further inquiry it may dismiss the complaint;

(f) in case the Authority is satisfied on the basis of the submissions made that there is need for further hearing into the complaint it may order production of documents or other evidence on a date and

time fixed by it;

(g) the Authority shall have the power to carry out an inquiry into the complaint on the basis of documents and submissions;

(h) the Authority shall have the power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the case to give evidence or to produce any documents which in the opinion of the Authority, may be useful for or relevant to the subject matter of the inquiry;

(i) on the date so fixed, the Authority upon consideration of the evidence produced before it and other records and submissions is satisfied that,-

(i) the respondent is in contravention of the provisions of the Act or the rules and regulations made thereunder it shall pass such orders including imposition of penalty as it thinks fit in accordance with the provisions of the Act or the rules and regulations made thereunder;

(ii) the respondent is not in contravention of the provisions of the Act or the rules and regulations made thereunder, the Authority may, by order in writing, dismiss the complaint, with reasons to be recorded in writing.

(j) if any person fails, neglects or refuses to appear, or present himself as required before the Authority, the Authority shall have the power to proceed with the inquiry in the absence of such person or persons after recording the reasons for doing so.

(3) The procedure for day to day functioning of the Authority, which have not been provided by the Act or the rules made thereunder, shall be as specified by regulations made by the Authority.

(4) Where a party to the complaint is represented by an authorised person, as provided under section 56, a copy of the authorisation to act as such and the written consent thereto by such authorised person, both in original, shall be appended to the complaint or the reply to the notice of the

complaint, as the case may be.

36. Manner of filing a complaint with the adjudicating officer and the manner of holding an inquiry by the adjudicating officer.- (1) Any aggrieved person may file a complaint with the adjudicating officer for interest and compensation under section 12, 14, 18 and 19 in Form-O, in triplicate until the application procedure is made web based, which shall be accompanied by a fee of rupees one thousand in the form of a demand draft or bankers cheque drawn on a nationalized bank in favor of Authority and payable at the branch of that bank at the station where the seat of the said Authority is situated or through online payment, as the case may be.

(2) The adjudicating officer shall for the purposes of adjudging interest and compensation follow summary procedure for inquiry in the following manner, namely:-

(a) upon receipt of the complaint the adjudicating officer shall issue a notice along with particulars of the alleged contravention and the relevant documents to the promoter;

(b) the promoter against whom such notice is issued under clause (a) of sub-rule(2) may file his reply in respect of the complaint within the period as specified in the notice;

(c) the notice may specify a date and time for further hearing and the date and time for the hearing shall also be communicated to the complainant;

(d) on the date so fixed, the adjudicating officer shall explain to the promoter about the contravention alleged to have been committed in relation to any of the provisions of the Act or the rules and regulations made thereunder and if the promoter,-

(i) pleads guilty, the adjudicating officer shall record the plea, and by order in writing, order payment of interest as specified in rule 17 and such compensation as he thinks fit, as the case may be, in accordance with the provisions of the Act or the rules and regulations, made thereunder;

- (ii) does not plead guilty and contests the complaint the adjudicating officer shall demand an explanation from the promoter;
- (e) in case the adjudicating officer is satisfied on the basis of the submissions made that the complaint does not require any further inquiry it may dismiss the complaint;
- (f) in case the adjudicating officer is satisfied on the basis of the submissions made that there is need for further hearing into the complaint it may order production of documents or other evidence on a date and time fixed by him;
- (g) the adjudicating officer shall have the power to carry out an inquiry into the complaint on the basis of documents and submissions;
- (h) the adjudicating officer shall have the power to summon and enforce the attendance of any person acquainted with the facts and circumstances of the case to give evidence or to produce any documents which in the opinion of the adjudicating officer, may be useful for or relevant to the subject matter of the inquiry;
- (i) on the date so fixed, the adjudicating officer upon consideration of the evidence produced before him and other records and submissions is satisfied that the promoter is,-
- (i) liable to pay interest or compensation or both, as case may be, the adjudicating officer may, by order in writing, order payment of interest as specified in rule 17 and such compensation, as he thinks fit, as the case may be, in accordance with the provisions of the Act, rules and regulations made thereunder;
 - (ii) not liable to pay any interest or compensation or both, as case may be, the adjudicating officer may, by order in writing, dismiss the complaint, with reasons to be recorded in writing;
- (j) if any person fails, neglects or refuses to appear, or present himself as required before the adjudicating officer, the adjudicating officer shall have the power to proceed with the inquiry in the absence of such

person or persons after recording the reasons for doing so.

(3) The procedure for day to day functioning of the adjudicating officer, which have not been provided by the Act or the rules made thereunder, shall be as specified by regulations made by the Authority.

(4) Where a party to the complaint is represented by an authorised person, as provided under section 56, a copy of the authorisation to act as such and the written consent thereto by such authorised person, both in original, shall be appended to the complaint or the reply to the notice of the complaint, as the case may be.

Chapter-IX Budget and Report

37. Budget, accounts and audit.- (1) The Authority shall maintain proper accounts of its funds and other relevant records. At the end of each financial year, the Authority shall prepare a budget and an annual statement of accounts. The annual statement of accounts shall be prepared in Form-P.

(2) The Authority shall preserve the accounts and other relevant records prepared under sub-rule (1) for a minimum period of five years.

(3) The accounts and other relevant records prepared under sub-rule (1) shall be signed by the Chairperson, Members, Secretary and the Officer in-charge of Finance and Accounts.

38. Annual Report.- (1) The Authority shall prepare, immediately after the end of the calendar year, its annual report in Form-Q.

(2) In addition to matters specified in section 78, the Authority may include in its Annual Report such other matters as it deems fit.

(3) The annual report shall, after adoption at a meeting of the Authority and signed by the Chairperson and Members and authenticated by affixing the common seal of the Authority, with requisite number of copies thereof, be submitted to the State Government within a period of one hundred and eighty days immediately following the close of the year for which it has been prepared.

Chapter-X Miscellaneous

39. Procedure for inquiry of the charges against the Chairperson or Member of the Authority or the Appellate Tribunal.- (1) In the event of the State Government becoming aware of occurrence of any of the circumstances specified in clause (d) or clause (e) of sub-section (1) of section 26 in case of a Chairperson or Member of the Authority or as specified under sub-section (1) of section 49 in case of a Chairperson or Member of the Appellate Tribunal, either by receipt of a complaint in this regard or *suo motu*, as the case may be, the State Government shall make a preliminary scrutiny with respect to such charges against the Chairperson or any Member of the Authority or Appellate Tribunal, as the case may be.

(2) If, on preliminary scrutiny, the State Government considers it necessary to investigate into the allegation, it shall place the complaint, if any, together with supporting material as may be available, before the Chief Justice of the High Court to appoint a seating Judge of the High Court.

(3) The State Government shall forward to the Judge, appointed under sub-rules (2) copies of,-

(a) the statement of charges against the Chairperson or Member of the Authority or Appellate Tribunal, as the case may be; and

(b) material documents relevant to the inquiry.

(4) The Chairperson or Member of the Authority or Appellate Tribunal, as the case may be, shall be given a reasonable opportunity of being heard with respect to the charges within the time period as may be specified in this behalf by the Judge conducting the enquire in the matter .

(5) Where it is alleged that the Chairperson or Member of the Authority or Appellate Tribunal is unable to discharge the duties of his office efficiently due to any physical or mental incapacity and the allegation is denied, the such Judge may arrange for the medical examination of the Chairperson or Member of the Authority or Appellate Tribunal.

(6) After the conclusion of the investigation, the Judge shall submit his report to the State Government stating therein his findings and the reasons

thereof on each of the articles of charges separately with such observations on the whole case as he thinks fit.

(7) Thereafter, the State Government shall in consultation with the Chief Justice of the High Court decide to either remove or not to remove the Chairperson or Member of the Authority or Appellate Tribunal, as the case may be.

40. Removal of doubts.- If any doubt arises, relating to interpretation of these rules, decision of the State Government shall be final.

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